

defendant Diego Ibarra, file and serve on all parties a notice of continued hearing including this order, and file proofs of service by June 9, 2026.

6. S-CV-0044479 Placer Union H.S. Dist. v. Auburn Renewables

Motion to Dismiss

Defendants ESP School Fund, Inc., Energy Saving Pros, Energy Saving Pros Construction, Inc., and Brian Pierce move to dismiss the action against them on the basis that plaintiff failed to bring the action to trial within five years pursuant to Code of Civil Procedure sections 583.310 and 583.360. Moving defendants also seek an order that they are the prevailing parties as to plaintiff. A review of the court's file reveals plaintiff dismissed the moving defendants on December 11, 2025, over one month before this motion was filed. While defendants acknowledge the December 11, 2025 dismissal, they argue the voluntary dismissal was ineffective because the five-year period had already elapsed and they are entitled to mandatory dismissal under Code of Civil Procedure section 583.360. However, defendants did nothing to enforce the five-year statute until after dismissal had already occurred.

Accordingly, this motion to dismiss is denied as moot and the court does not determine moving defendants to be prevailing parties.

7. S-CV-0051379 Nayeri, Parvin v. Regents of the Univ. of Cal.

Defendants' motion for summary judgment or, in the alternative, summary adjudication is dropped from calendar as moot in light of the full dismissal with prejudice filed May 28, 2026.

8. S-CV-0052071 Mustain, William v. Johnson, Richard Wayne

If oral argument is requested, it will be heard in Department 42 at **8:30 a.m.** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Final Approval

Plaintiff moves for an order finally approving the parties' class action and PAGA action settlement. No opposition has been filed. All moving papers and supporting papers shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) This motion is supported by insufficient notice.